



Bankruptcy Form:

Note: This document contains the information provided by the bankrupt when completing their Bankruptcy Form online.

Questions with this symbol  indicate that information provided in response is not accessible by the public, pursuant to subsections 54(6) or 55(11) of the *Bankruptcy Act 1966* (the Act).

This form incorporates **Debtor's Petition** (questions 1-17) and **Statement of Affairs** (questions 1-13, 17-57) as approved under the Bankruptcy Act 1966.

Section A - Your personal details and circumstances of your bankruptcy

Question 1:

Your full name: **RICHARD WILLIAM MCLEAN**

Question 2:

Have you used other names or been known by another in the last 10 years (e.g. maiden name, alias)?

First Name	Middle Name	Surname

Question 3:

Date of Birth: **08-Apr-1973**

Question 4:

Gender: **Male**

Question 5:

Are you of Aboriginal and / or Torres Strait Islander origin? **No**

Question 6:

Home address: **2 McCubbin Street, FOOTSCRAY VIC 3011**

Question 7:

Postal address: **Same as Street Address**

Question 8:

Email: **rich@richmclean.com.au**

OFFICE USE ONLY

Accepted by the Official Receiver



30 March 2021

Question 9: ☒Preferred contact number: **0400639248****Question 10:**

What language(s) do you speak at home?

English**Question 11:**What is your usual occupation, trade or profession? **Personal Care Consultants****Question 12:**What industry do you usually work in? **Other Allied Health Services****Question 13:**Why are you completing this form? **I am voluntarily becoming bankrupt**

If through a court order, Court Reference Number

Question 14: ☒

Which of the following applies to you:

- I am currently in Australia: **Yes**
- I usually live in Australia:
- I have a residence or place of business in Australia:
- I am carrying on business in Australia as a sole trader/partnership:
- None of the above:

Question 15:Do you have an active Debt Agreement or Personal Insolvency Agreement? **No****Question 16:**How are you applying to become bankrupt? **As an individual**

Jointly with someone else - Give their name(s)

As a member of a business partnership - Other business partner's name(s)

Question 17: ☒Did you receive any bankruptcy information or advice before completing this form? **No**

Give details:

Advice Source	Their name or company name	What was the cost?

Question 18:

What do you believe is/are the cause(s) of your insolvency

Debts due to injury / ill health of yourself or family member

Describe the circumstances of what you believe is / are the cause(s) of your insolvency ☒ **I became unwell from work on 22nd jan. My income protection HCF told me that it was a prior condition and did not pay me income protection. I would be lying if I said i had not gambled. I have serious mental health issues and was on a DSP for over 15 years yet I did a PhD and ran my own business for two years. The powers that be conspired to ruin my business. Covid did not help**

Question 19:

When did you start experiencing financial difficulty? **31-Dec-2020**

Question 20:

Have you previously been bankrupt, had a debt agreement or personal insolvency agreement? **No**

In what Year(s)

Question 21:

What is your current marital status? **Single / never married**

Partner's Name:

Partner's annual income before tax:

Ex-partner's name:

Question 22:

What are your current living arrangements? **Renting**

Are you paying rent to your spouse? **No**

Amount you pay per week:

Are you living rent free with your spouse?

Are you living rent free with your parents or other family member?

Are you paying rent to your parents or other family member? **No**

Amount you pay per week:

Boarding - Amount you pay per week:

Subsidised by employer - Amount you pay per week:

Other - details:

Question 23:

Have you had previous residential addresses, not including your current address? **Yes**

Address	Do you own or were buying this property?
10 Raleigh Street, FOOTSCRAY VIC 3011	No

Question 24:

Do you have any passports? **Yes**

Country of Issue	Number ☒	Expiry Date ☒
Australia	N6363290	10-Feb-2023

Question 25:

Have you had any family court proceedings or family law financial agreements? **No**

Relevant Dates:

Question 26: ☒

Contact details of someone who knows you but does not live with you:

Name: **Jodie Bongetti**

Email: **jodesmclean@gmail.com**

Preferred contact number: **0427309049**

Residential address: **17 Cranbrook Street, YARRAVILLE VIC 3013**

Relationship to you: (e.g. friend, parent, sibling) **Immediate Family**

Section B - Your Employment and Income Details

Question 27:

Are you currently employed, or have you been employed at any time during the last 12 months? **Yes**

Have you ever been employed?

When were you last employed?

Employer name 	Employer email 	Business address 	Are you still employed at this employer?	Date Left Employment (if applicable)
www.richmclean.com.au	rich@richmclean.com.au	2 McCubbin Street, FOOTSCRAY VIC 3011	No	21-Jan-2021

Question 28:

Give details of the income you have received and expect to receive, from Australia and overseas:

Type of Income	Received	How much did you receive before tax in the last 12 months?	How much do you expect to receive before tax in the next 12 months?
Have you received or expect to receive salary, wages, commissions or bonuses from any employer?	Yes	\$59,000.00	\$0.00
Have you received or expect to receive government pensions, benefits or allowances?	Yes	\$2,652.00	\$2,652.00
Have you received or expect to receive allowances or benefits from any employer?	No		
Have you received or expect to receive income derived from self-employment, a business or contracting?	Yes	\$59,000.00	\$0.00
Have you received or expect to receive income from employment termination or compensation payments?	No		
Have you received or expect to receive income from superannuation or retirement income?	No		
Have you received or expect to receive income from dividend, rent, interest or any other investments?	No		
Have you received or expect to receive income from any other sources not otherwise listed?	No		

Question 29:

Do you make any pre-tax contributions to superannuation or have any salary sacrifice arrangements in place? *Do not include your employer's contributions.* **No**

How much per year?

Question 30:

Do you have private hospital insurance? **Yes**

Question 31:

Do you live with anyone who relies on you for financial support? **No**

Age	Dependant's Annual Income

Question 32:

Do you expect to pay any child support in the next 12 months under the Child Support (Assessment) Act 1989 or the Family Law Act 1975? **No**

Amount you expect to pay in the next 12 months:

Question 33:

Do you expect to receive a tax refund? **No**

Financial Year	Amount you expect to receive

Section C - Money you owe

Question 34:

Give details of your unsecured debts, in Australia and overseas.

A **creditor** is who you owe the debt to.

An **unsecured debt** is a debt not backed by an asset (e.g. a credit card, tax debt, personal loan). An **unsecured creditor** does not have the right to repossess and sell an asset if you are unable to repay what you owe them.

A **related entity** includes a relative, a company in which you or a relative are a director, a trust in which you or a relative are a beneficiary or trustee, a partnership in which you or a relative are a member. The full definition of related entity is even broader than this. If you are unsure, visit the [AFSA website](#).

Type of Debt	Creditor's name	Creditor's email 	Creditor's postal address 	Reference / account number if known	Amount owed	Creditor is a related entity	Joint debt
Credit Card	ANZ			4564-6271-1008XXXX	\$1,000.00	No	No
Credit Card	Money me	hello@money.me.com.au		10001118522	\$10,000.00	No	No
Credit Card	BRAVURE OBO LATITUDE FINANCIAL SERVICES			5218 9335 350XXXX	\$2,000.00	No	No
Deferred Payments	ZIP MONEY			2432289	\$1,000.00	No	No
Deferred Payments	ZIP MONEY			2486 270	\$1,000.00	No	No
Personal Loan	LUMI FINANCE PTY LTD			Richard Mclean	\$8,778.00	No	No
Personal Loan	MAX FUNDING				\$3,967.00	No	No

Tax	COMMONWEALTH OF AUSTRALIA			72066207615	\$5,388.65	No	No
HECS/HELP Debts	COMMONWEALTH OF AUSTRALIA				\$1,649.54	No	No

Question 35:

In the last 12 months have you paid a creditor more than \$1,000 over and above your normal repayments? *If you have no formal payment schedule, include all payments here.* **No**

Creditor's name	Creditor's email ☒	Creditor's postal address ☒	Amount paid	Date paid	Reason

Question 36:

In the last 12 months have you surrendered any assets to a creditor or has a creditor repossessed any assets? **No**

Creditor's name	Creditor's email ☒	Creditor's postal address ☒	Type of Asset	Asset details	Value of asset	Date surrendered / repossessed	Has the creditor sold the asset?

Section D - Your money and general personal assets

Question 37:

How much cash do you have, excluding money in bank accounts? **\$5.00**

Question 38:

Do you have any bank, building society, credit union accounts? (these include accounts closed in the last 12 months or with a \$0 balance). **Yes**

Name of financial institution	BSB ☒	Account Number ☒	Balance	If this is a joint account, name of the other party
Bendigo bank	633000	142509507	\$0.00	No
Bendigo bank	633000	170658350	\$0.00	No
Commonwealth Bank	063307	10140384	\$0.00	No

Question 39:

Do you have any superannuation accounts? **Yes**

Fund Name	Account Number ☒	Current Balance	Self-Managed Superannuation Fund
Australian Super	1073219818	\$1,384.00	Yes

Question 40:

Do you own, or are you entitled to, any shares? **No**

Name of company	Number of shares	Estimate total value of shares	SRN ☒	HIN ☒	Restrictions on sale

Question 41:

Do you own any vehicles including cars, motorbikes, trailers, caravans, campervans, boats or other means of transport? *Please include any vehicles registered under your name.* **Yes**

Type of Vehicle: **Car**

Make and Model: **jeep, Chereoke**

Year of Manufacture: **2009**

Registration number: **YAT751**

Estimated Resale Value: **\$4,000.00**

Under Finance: **No**

Name of Lender	Lender's postal address ☒	Lender's email ☒	Amount Owing	Account Number ☒	Joint Loan

Question 42:

Do you own any jewellery, artwork, antiques, collectables, timeshare, copyrights, patents, trademarks, work tools or livestock/animals valued at over \$2,000? **No**

Type of Asset	Estimated value	Jointly owned	If this asset is jointly owned, name of other party	Email of joint owner

Question 43:

Do you expect to receive a distribution from a deceased person (e.g. you are receiving an inheritance under a will)? **No**

Estimated value of distribution	Name of deceased	Relationship to you ☒	Executor's name ☒	Executor's email ☒	Executor's address ☒

Section E - Real Estate

Question 44:

Do you have any interest in real estate (e.g. a house, a unit, a commercial property, block of land) whether you are the registered owner or not? **No**

Type of property

Property address

Estimated current value

Are there any co-owners?

Name of Co-owner	Co-owner's Address ☒	Co-owner's email ☒

Is the property rented to tenants?

Name of person or company collecting rent:

Email of person or company collecting rent: ☒

Postal address of person or company collecting rent: ☒

Is the property listed for sale?

Name of the agent:

Email of the agent: ☒

Postal address of the agent: ☒

Are there any loans against the property?

Name of lender	Creditor's Address ☒	Creditor's email ☒	Amount owing	Type of Security	Account Number ☒	Creditor has taken possession	Joint debt	Creditor is a related entity	Interest only loan

Section F - Other financial assets

Question 45:

Do you have any managed investments, such as interest in mutual funds or other investments? **No**

Type of investment	Estimated value	Name of fund or institution

Question 46:

Do you own, or are you entitled to, any digital assets (e.g. digital currency such as Bitcoin)? **No**

Type of digital asset	Amount held	Estimated total value

Question 47:

Do you have any accounts (other than bank accounts, digital assets or other accounts already disclosed) where money or value is stored (e.g. Tabcorp, Sportsbet, PayPal or similar)? **No**

Description	Account Name	Account number 	Balance

Question 48:

Does anyone owe you money, including public / private companies, friends, relatives or family trusts? **No**

Name of person who owes you money	Email of person who owes you money 	Amount owed	Date of debt	What is owed for

Question 49:

Have you contributed to the value of \$5,000 or more to the purchase or improvement of any asset owned by someone else, including through cash and / or other forms of non-financial contribution (e.g. contribution to purchase price, paying ongoing expenses, assisting renovations)? **No**

Description of asset	Owner's name	Type of contribution	Estimated value of contribution	Date of your contribution

Question 50:

Do you have any other assets valued at over \$2,500, other than your general household furniture, not already noted on this form? **No**

Description of asset:

Estimated value:

Is the asset jointly owned?

Do you know the location of this asset? 

Is there a loan / security against the asset?

Name of Creditor	Creditor's postal address 	Creditor's email 	Account/ Loan Number 	Amount Owing

Section G - Asset transfers

Question 51:

Have you sold, gifted or transferred any assets (including money) worth over \$5,000 in the last 5 years (e.g. real estate, shares, businesses, vehicles)? **No**

Description of asset	Sold, gifted, transferred	Recipient's relationship to you	Date of disposal	Estimated value	Amount you received

Question 52:

Have you, or has someone else made lump sum payments totalling over \$5,000 or transferred any assets worth more than \$5,000 to a superannuation fund for your benefit in the last 5 years? **No**

Date transferred	Name of fund transferred to	Name of third party who made the payment / transfer	Description of what was transferred	Estimated value of asset / payment	Current balance of fund

Section H - Business and Companies

Question 53:

In the last 5 years, have you traded as a sole trader, including as a contractor, sub-contractor or similar, or been involved in a partnership? **Yes**

Business name: **www.richmclean.com.au**

Australian Business Number (ABN) if applicable? **72066207615**

What industry is or was the business in? **Other Allied Health Services**

Business Address: **2 McCubbin Street, FOOTSCRAY VIC 3011**

Is the business still trading? **Yes**

Date ceased trading:

What was the estimated annual turnover?

What is the estimated annual turnover? **\$0.00**

Is the business premises under a current lease? **No**

Address of Premises:

Landlord's name:

Landlord's email:

Lease expiry date:

How much rent is left to pay until the end of your lease agreement?

Does the business have any assets? **No**

Type of asset	Estimated resale value	Name of any creditor or owner / supplier with a charge	Asset on consignment or owned by someone else

Have you sold or disposed of any business assets worth over \$5,000 in the past 12 months? **No**

Description of asset	Sale price	Name of purchaser
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Is / was this business conducted through a partnership? **No**

Partner's Name	Partner's email	Partner's postal address	Partner's phone number

Are there any current employees? **No**

Employee's Name	Employee's email	Employee's postal address	Employee's phone number

Does someone else prepare the financial statements and tax returns? **No**

Their name	Their email	Their postal address

Question 54:

Are you currently, or in the last 5 years have you been, a director / secretary or held a management role in a company? **No**

Company name and trading name if applicable:

Australian Company Number (ACN) if applicable?

What industry is or was the company in:

Your role in the company:

Current director/secretary
Current Shareholder
Other
Details

Previous director/secretary
Previous Shareholder

Trading status of the company:

Estimated annual turnover	Estimated total assets	Estimated liabilities

Date ceased trading	Estimated total assets	Estimated liabilities

Liquidator / Receiver / Administrator appointed to manage the company:

Appointee's name	Appointee's email	Date appointed

Has a liquidator made a claim against you?

Is this a trustee company?

Name of trust:

Does the company owe you any wages, loans, distributions or any other money not already noted in this form?

How Much:

What for:

Does someone else prepare the financial statements and tax returns?

Their name	Their email ☒	Their postal address ☒

Section I - Trusts

Question 55:

Are you currently, or in the last 5 years have you been, involved in a trust as a trustee, beneficiary or unit holder? **No**

Trust name:

In what capacity / capacities are, or were, you involved?

Beneficiary
Unit holder
Trustee

Whilst trustee, did you incur any debts on behalf of the trust?

Amount owed:

Description of the debt:

Has the trust ever traded / operated?

Australian Business Number (ABN) if applicable?

What industry is or was the trust in?

Does someone else prepare the financial statements and tax returns?

Their name	Their email 	Their postal address 

Type of trust:

Name of the trustee(s)	Trustee's email 	Trustee's address 

Does the trust owe you any wages, loans, distributions or any other money not already noted in this form?

How much:

What for?

Does the trust own any assets, including cash, bank accounts, real estate?

Description	Estimated value

Have you received any income or capital distribution from this trust in the last 5 years?

Amount:

Date of last payment:

Section J - Legal Action

Question 56:

Are you currently, or do you have reason to believe you will soon be, involved in any legal proceedings including recovery action or family law matters? **No**

What is the nature of the legal action?

What is your involvement?,

Name of the other party / parties:

Name of the court / tribunal:

Court No. / File No.:

Your lawyer's name:

Your lawyer's email:

Provide brief information about the proceeding:

Question 57:

Do you have any assets that are subject to a proceeds of crime order? 

Name of the court / tribunal:

Court No. / File No:

Your lawyer's name:

Your lawyer's email:

Provide information about the asset(s)

Description of asset	Location	Who has possession of the asset?	Is the asset restrained or forfeited?

Declarations

DECLARATION of debtor

A person can be imprisoned for 12 months for knowingly making a false declaration (s267(2) of the Bankruptcy Act 1966).

I declare the information provided in this form is correct and complete.

Debtor's full name: , RICHARD WILLIAM MCLEAN